Dunn & Acosta LLP
Conroe, TX
Phone 713-555-4341

Settlement Demand

26 Nov 2023

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1473 - Demand for settlement

Dear Claims Representative:

Our firm represents Billy Jones in connection with the motor vehicle collision that occurred on 8 Apr 2023 at a signalized intersection. Our client was proceeding through the intersection on a green light when your insured failed to yield and struck the driver's side of our client's vehicle. The impact was severe enough to deploy airbags and leave both vehicles with extensive structural damage, as documented in the enclosed police report and repair estimates.

As a direct result of the collision, our client suffered a significant injury to the right shoulder, including a torn rotator cuff that has required diagnostic imaging, orthopedic consultation, and physical therapy. Our client has been unable to perform overhead work and has missed substantial time from employment. Treatment is ongoing, and the treating physiican has not yet released our cleint to full duty.

Liability in this matter is clear. Your insured admitted at the scene that he did not see the signal before entering the intersection, and the independent witness statement supports our client's account. There is no reasonable basis on which a jury would assign fault to our client.

Accordingly, we demand payment of $64,000.00 to resolve all claims arising from this incident. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Jennifer Miles, accident reconstructionist

Sincerely,

Candice Smith
Dunn & Acosta LLP